

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address): TELEPHONE NO.: FAX NO. (Optional): E-MAIL ADDRESS (Optional): ATTORNEY FOR (Name):	FOR COURT USE ONLY
SUPERIOR COURT OF CALIFORNIA, COUNTY OF STREET ADDRESS: MAILING ADDRESS: CITY AND ZIP CODE: BRANCH NAME:	
PETITIONER/PLAINTIFF: RESPONDENT/DEFENDANT: OTHER PARTY/PARENT:	
EX PARTE APPLICATION TO ☐ ISSUE, ☐ MODIFY, OR ☐ TERMINATE AN EARNINGS ASSIGNMENT ORDER	CASE NUMBER:

APPLICANT DECLARES

1. ☐ **Child support** was ordered as follows on (date):

a. Child's name

b. Date of birth

c. Monthly amount

d. Payable by (party):

e. Payable to (party):

f. Total amount unpaid (arrears) is at least: \$ _____ as of (date): _____

2. ☐ **Spousal or domestic partner support** ☐ **family support** was ordered as follows:

a. Date of order: _____

b. Payable by ☐ petitioner ☐ respondent ☐ other parent

c. Payable to ☐ petitioner ☐ respondent ☐ other (specify): _____

d. Total amount unpaid (arrears) is at least: \$ _____ as of (date): _____

3. ☐ **Interest and penalties**

a. The amount of arrears stated in items 1f and 2d ☐ does ☐ does not include interest at the legal rate. (If interest is not included, it is not waived.)

b. The amount of arrears stated in items 1f and 2d ☐ does ☐ does not include penalties at the legal rate. (If penalties are not included, they are not waived.)

4. ☐ **(Complete for support ordered before July 1, 1990, only)**

Payment of ☐ child support ☐ spousal or partner support is overdue in the sum of at least one month's payment. Written notice of my intent to seek an earnings assignment was

a. ☐ given at least 15 days before the date of filing this application

(1) ☐ by first class mail.
 (2) ☐ by personal service.
 (3) ☐ contained in the support order described in item 1 or 2.
 (4) ☐ other (specify): _____

b. ☐ waived (explain): _____

5. ☐ An earnings assignment order has not been issued for support ordered after July 1, 1990.

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ISSUANCE OF EARNINGS ASSIGNMENT ORDER

6. I request an earnings assignment order issue for the following monthly deductions:
- a. ☐ \$ per month current **child support**.
 - b. ☐ \$ per month current **spousal or domestic partner support**.
 - c. ☐ \$ per month current **family support**.
 - d. ☐ \$ per month **child support arrears**.
 - e. ☐ \$ per month **spousal or domestic partner support arrears**.
 - f. ☐ \$ per month **family support arrears**.
 - g. **Total deductions per month:** \$

MODIFICATION OF CHILD SUPPORT EARNINGS ASSIGNMENT ORDER

7. ☐ The existing earnings assignment order for child support should be modified as follows (*specify*):

The modified earnings assignment order is requested because (*check all that apply*):

- a. ☐ One or more of the following children listed in the child support order are emancipated (support is no longer required by law) as of the following dates (name each emancipated child and date of emancipation):
- b. ☐ The support arrears in this case are paid in full, including interest.
- c. ☐ The earnings assignment order must be conformed to the most recent support order as follows (*specify*):
- d. ☐ The local child support agency is no longer enforcing the current support obligation in this case but is required to collect and enforce any arrears owing.
- e. ☐ Other (*specify*):

TERMINATION OF CHILD SUPPORT EARNINGS ASSIGNMENT ORDER

8. ☐ The earnings assignment order for child support should be terminated because (*check all that apply*):
- a. Past due support has been paid in full, including any interest due.
 - b. ☐ There is no current support order.
 - c. ☐ The child reached age 18 and completed the 12th grade on(*date*):
 - d. ☐ The child reached 18 and is no longer a full-time high school student as of (*date*):
 - e. ☐ The child reached age 19.
 - f. ☐ The child died on (*date*):
 - g. ☐ The child married on (*date*):
 - h. ☐ The child went on active duty with the armed forces of the United States on (*date*):
 - i. ☐ The child received a declaration of emancipation under Family Code section 7122 (*name each child and give details*):

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8. (continued)

- j. ☐ The previous stay of the earnings assignment was improperly terminated (*specify*):
- k. ☐ The State Disbursement Unit has been unable to deliver payment for a period of six months due to the failure of the support recipient to notify the State Disbursement Unit of a change in his or her address.
- l. ☐ Other (*specify*):

MODIFICATION OF SPOUSAL, DOMESTIC PARTNER, OR FAMILY SUPPORT EARNINGS ASSIGNMENT ORDER

9. ☐ The existing earnings assignment order for spousal, domestic partner, or family support should be changed as follows (*specify*):

The modified earnings assignment order is requested because (*check all that apply*):

- a. ☐ The support arrears in this case are paid in full, including interest.
- b. ☐ The earnings assignment order must be conformed to the most recent support order as follows (*specify*):
- c. ☐ Other (*specify*):

TERMINATION OF SPOUSAL, DOMESTIC PARTNER, OR FAMILY SUPPORT EARNINGS ASSIGNMENT ORDER

10. ☐ The earnings assignment order for spousal, domestic partner, or family support should be terminated because (*specify*):

- a. Past due support has been paid in full, including any interest due.
- b. ☐ There is no current support order.
- c. ☐ The supported spouse or domestic partner remarried or registered a domestic partnership on (*date*):
- d. ☐ The supported spouse or partner died on (*date*):
- e. ☐ By terms of the current order, spousal, partner, or family support terminated on (*date*):
- f. ☐ A previous stay of wage assignment was improperly terminated (*specify*):
- g. ☐ The ☐ employer ☐ State Disbursement Unit has been unable to deliver payment for a period of six months due to the failure of the support recipient to notify that employer or the State Disbursement Unit of a change in his or her address.
- h. ☐ Other (*specify*):

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date:

(TYPE OR PRINT NAME)



SIGNATURE